

MEMORANDUM OF AGREEMENT

This *Memorandum of Agreement* (hereinafter "Agreement") is made and entered into by and between:

SHOPEE PHILIPPINES INC., a corporation duly organized and existing under and by virtue of the laws of the Republic of the Philippines with business address at 48F The Podium West Tower, 12 ADB Avenue, Wack-Wack Greenhills 1550, City of Mandaluyong duly represented by its **Authorized Representative, Ng Jieqi**, and hereinafter referred to as "**Host Training Establishment or HTE**".

-and-

Brent Ulysses D. Tuazon, of legal age, with address Blk 9 Lot 27 St. Peter Hausland Subdivision Anabu-1b Aguinaldo Hi-way Imus, Cavite Anabu I -B, Imus, Cavite, South Luzon, 4103, hereinafter referred to as "**Student**".

(Each a "Party", collectively the "Parties")

Witnesseth: That-

WHEREAS, the Student is an enrolled student under the **De La Salle University - Manila** (the "School"), which instituted an internship program as part of the curriculum for its students in order to provide them with adequate experience in actual industry work operations and to augment their formal education;

WHEREAS, the School and the **HTE** executed a Memorandum of Agreement that sets out the terms and conditions of the partnership between the School and the HTE to provide the School's qualified students a venue to gain hands on experience as future business professionals through the HTE's internship program ("Internship Program");

WHEREAS, the HTE offered the Student to be part of the Internship Program and the Student has accepted such offer;

NOW, THEREFORE, for and in consideration of the foregoing premises, the Parties hereby agree as follows:

I. PURPOSE OF THE AGREEMENT

This Agreement sets out the terms and conditions that will govern the conduct of the Internship Program between the HTE and the Student.

This Agreement shall be deemed effective as of **June 1, 2026** and shall continue to be in full force and effect until **August 7, 2026** ("Term"), which shall be equivalent to **400** working hours.

II. DETAILED DESCRIPTION OF ROLES AND RESPONSIBILITIES OF PARTIES INVOLVED

1. Responsibilities of the HTE

- 1.1. The **HTE** shall provide free relevant instruction, exposure, and training to the **Student**, consistent with its policies, rules, and regulations. It shall treat the **Student** in a professional manner, and shall ensure that the **Student**, in the course of training, shall not be exposed to any form of harassment/unethical practice or tasks and work assignments that are unreasonably risky, dangerous or unrelated to the purposes of the Internship Program;
- 1.2. The **HTE** will accomplish the respective evaluation forms required by the School.
- 1.3. The **HTE** shall issue a Certificate of Completion upon request of the School or the Student;
- 1.4. The **HTE** shall provide the necessary equipment, access, and other needed materials/facilities for the proper execution of the assigned tasks if it shall require the **Student** to conduct online or work-from-home tasks.

2. Responsibilities of the Student

- 2.1. The **Student** shall abide by the administrative policies, rules, and standards of the **HTE** and the School's handbook.
- 2.2. The **Student** shall accomplish the assigned tasks to the best of his/her abilities and conform with the Internship Program.
- 2.3. If and when required, the **Student** shall report to the School's Internship Program Coordinator or any designated person by the School.
- 2.4. If and when required, the **Student** shall accomplish and submit to the School's authorized representative a weekly report or any prescribed journal of activities, including an accomplishment report as well as challenges and reflections on the training experience.
- 2.5. The **Student** shall complete the agreed scope of work within the Term.
- 2.6. The **Student** shall timely report for training and promptly accomplish assigned tasks or assignments in the best of his/her ability and in view of his/her expected skill and knowledge of the subject matter.
- 2.7. The **Student** and parents/guardian concerned renounces and waive any claim against **HTE** and/or the School for any injury or loss that the **Student** may sustain or may suffer, personal or pecuniary, in the performance of his/her duties and functions while under training, unless such is attributable to the negligence or fault of any of the employees, officers, or personnel of the **HTE** and/or the School.
- 2.8. The Student shall keep confidential and shall not at any time or in any manner, either directly or indirectly, divulge, disclose, or communicate to any person, firm or corporation in any manner whatsoever, any information concerning any matters affecting or relating to **HTE**.
- 2.9. The **Student** shall promptly inform **HTE** of any loss of confidentiality, unauthorized disclosure, misappropriation, or misuse by any person of any Company property, whether data or physical in nature, upon the discovery of **Student**.

3. Internship Plan

- 3.1. The Student is expected to participate in the Internship Program in accordance with the plan jointly developed by the School and the HTE that specifies the objectives, knowledge, skills, and competencies that the Student-Interns should acquire in each learning area, assignment, and/or activity (the "Internship Plan").
- 3.2. The Internship Plan shall be deemed an integral part of this Agreement.

III. PLACE OF ASSIGNMENT AND HOURS OF WORK

The **Student** shall be directed to report for work at the **HTE's** discretion whether at Shopee Office located at 48/F The Podium West Tower, 12 ADB Ave. Ortigas, Mandaluyong City, 1550 from 10:00 AM to 7:00 PM or through virtual or digital rooms where the **HTE** conducts business meetings and/or transactions or through work-from-home arrangements, as delegated by the **HTE**.

The Student is allowed a one (1) hour break/lunch time and reasonable morning/afternoon break-times not exceeding fifteen (15) minutes.

The Student is allowed to perform Online Training (web-based), which shall be considered creditable internship hours for the purpose of this Agreement.

IV. ALLOWANCE

The **HTE** shall provide Student an allowance of One Thousand Pesos (PhP1,000.00) per day, which shall be paid twice a month to the Student in accordance with the policy of the **HTE**.

V. INTELLECTUAL PROPERTY

Intellectual property shall include any property defined as such by the Intellectual Property Code of the Philippines (RA 8293).

Any intellectual property owned by the Parties prior to this Agreement shall continue to be owned by them. The **Student** cannot use any confidential information or data from the **HTE** to create intellectual property without the express written approval of the **HTE**.

Any intellectual property created by the **Student** during Term, whether with or without financial support from the **HTE**, shall be exclusively owned by the **HTE**.

VI. CONFIDENTIALITY

Except upon prior written consent of the disclosing Party through its duly authorized representative, the receiving Party agrees, during and after the Term of this Agreement, not to reveal, disclose, or communicate to any person, natural or juridical, any of the trade secrets, or any information which relates to the operations, processes, or dealings of, or any other information concerning, the organization, business, finances, transactions, or affairs of the disclosing Party, its subsidiaries, affiliates or its customers, including, without limitation, any invention, formula, vendor information, customer information, apparatus, equipment, research, report, technical data, know-how, computer program, software, software documentation, hardware design, technology, marketing or business plan, forecast, unpublished financial statement, budget, license, price, cost and employee list, which may come to the receiving Party's knowledge in the performance of its obligations under this Agreement (whether in written, magnetic, electronic, digital, or any other form) ("Confidential Information"). The receiving Party agrees that the disclosing Party is and shall remain the exclusive owner of all its Confidential Information. All Confidential Information shall for all time and for all purposes be regarded by the receiving Party as strictly confidential and held solely for the disclosing Party's sole benefit and use, and shall not be disclosed by the receiving Party to any third party whatsoever unless specifically authorized by the disclosing Party in writing.

If the receiving Party is required by law, court order, or other governmental action or any rule or regulation of a stock exchange to disclose all or any part of the Confidential Information; or reasonably anticipates or has reasonable cause to anticipate that the receiving Party may be so required to disclose such Confidential Information, the receiving Party must immediately notify the disclosing Party of such actual or anticipated requirement and must use its best endeavors, as may be consistent with the receiving Party's legal obligations, to delay and withhold such disclosure until the disclosing Party has had an opportunity to oppose such disclosure by lawful means. The receiving Party shall not oppose action by the disclosing Party to obtain an appropriate protective order or other reliable assurance that confidential treatment will be accorded the Confidential Information.

VII. DATA PRIVACY

To the extent that any of the data or information extended by either Party to the other Party and/or collected/processed by either Party on behalf of the other Party pursuant to this Contract consists of personal data as defined in the Data Privacy Act of 2012 ("DPA"), each Party agrees that it will not conduct itself, and to procure that its faculty, staff or employees, and the participants of this program, shall not conduct themselves, in such a manner as to cause the other Party to be in breach of its obligations (as a "data user") under the DPA. The Parties shall ensure that all information, whether personal data or otherwise, relating to the participants or its employees are obtained lawfully and protected in compliance with the requirements of all legislation in force from time to time, including, without limitation, the DPA and its Implementing Rules and Regulations, and other applicable laws.

VIII. RELATIONSHIP OF THE PARTIES

The **HTE** is not obliged to employ the **Student** upon completion of the Internship Program.

This Agreement shall not, in any way, constitute an employee-employer relationship between the **HTE** and the **Student**.

IX. TERMINATION

The Parties shall have the right to terminate this Agreement before the end of the Term of this Agreement by serving a written notice to the other party at least fifteen (15) days prior to the intended date of termination and based on the following grounds:

- i. The HTE is proven to fail in ensuring the safety of the Student and quality of training contemplated by this Agreement;
- ii. There is any material breach of any of the provisions of this Agreement; and
- iii. The Student fails to meet the standards and minimum expectations that the HTE sets forth as behavior or conduct to be observed in the course of the Internship Program.

If the **Student**: (i) materially violates any company policy of the **HTE** (ii) commits serious misconduct during the Internship Program, or (iii) is found to have misrepresented or withheld important information in any of the application documents submitted to the **HTE**, the **HTE** shall have the right to immediately, with due process, terminate the Internship Program in relation to such **Student** by immediately serving a written notice to the School. This includes the provision of sufficient notice and exercise of the student's right to be heard. The **HTE** shall invite the School as part of the panel in the determination of disciplinary action to be imposed to the Student.

The Student may terminate this Agreement for any cause upon two (2) weeks prior notice to the **HTE**, unless such period is waived in writing by the **HTE**.

X. GOVERNING LAW AND DISPUTE RESOLUTION

This Agreement shall be governed by the applicable laws of the Republic of the Philippines. In the event of any dispute, controversy, claim or difference of any kind whatsoever arising between the Parties in connection with this Agreement, including the breach, default, termination or validity of this Agreement, or in connection with the determination of any matters which are subject to objective determination pursuant to this Agreement ("Dispute"), the Parties shall attempt, for a period of thirty (30) days after the receipt by one (1) Party of a notice from the other Party of the existence of a Dispute (the "Dispute Notice"), to settle such Dispute in the first instance by mutual discussions between the senior management of each of the Parties. If the Dispute cannot be settled by mutual discussions within the thirty (30) day period, it shall be referred to and finally resolved by arbitration in accordance with Republic Act No. 9285, otherwise known as the Alternative Dispute Resolution Act of 2004. There will be three (3) arbitrators and shall be conducted as follows:

- i. Each Party shall appoint one (1) arbitrator. The arbitrators thus appointed shall select a third arbitrator who shall act as the presiding arbitrator of the tribunal or panel;
- ii. The arbitration shall be conducted in the English language. The place of arbitration shall be Makati City, Philippines;
- iii. The Parties agree that this arbitration clause is an explicit waiver of immunity against validity and enforcement of the award or any judgment thereon made pursuant thereto and that such award or judgment thereon, if unsatisfied, shall be enforceable in any court having jurisdiction in accordance with its laws against any party participating in the arbitration; and
- iv. The Parties agree that the award of the arbitration tribunal shall be the sole remedy for all claims and counterclaims concerning the matter in dispute presented to the arbitration tribunal. The costs, expenses, fees, and charges of the arbitration proceedings shall be equally shared by the Parties.

XI. GENERAL PROVISIONS

1. **Indemnification.** Each Party hereby agrees to indemnify, defend, and hold the other Party harmless from any and all claims, demands, costs, liabilities, losses, expenses, and damages arising out of or in connection with any claim that, taking the claimant's allegation to be true, would result in a breach by the indemnifying party of any of the representations, warranties, covenants or terms and conditions of this contract.
2. **Waiver and Variations.** The failure of either Party to enforce or to exercise at any time or for any period of time any term of this Agreement shall not be construed as a waiver of such term and shall in no way affect that Party's right later to enforce or to exercise it. No waiver of any right under this Agreement or the application of any provision of this Agreement shall be valid unless it is in writing and signed by or on behalf of the Party waiving such right or the application of the relevant provision. No

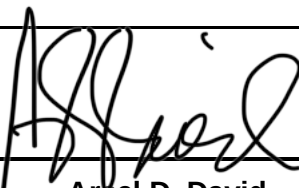
variation, modification or amendment of this Agreement or any supplement thereto shall be valid unless it is in an instrument in writing and signed by or on behalf of each of the Parties.

- 3. The rights, powers, and remedies herein expressly provided are cumulative and not exclusive of any rights, powers, or remedies which the Party would otherwise have.
- 4. **Notices.** Except as otherwise provided herein, all notices under this Agreement shall be in writing and shall be (i) given personally; (ii) sent by registered mail; or (c) sent by electronic email to the intended recipient's address as specified in this Agreement or such other address as that Party shall have notified to the other from time to time and shall have effect upon receipt (if given personally or sent by electronic email), or two (2) days after posting (if sent by registered mail).
- 5. **Survival.** The provisions of this Agreement which are specifically stated to survive or whose operation necessarily requires survival after the expiration or termination of this Agreement shall so survive such expiration or termination.
- 6. **Entire Agreement.** This Agreement constitutes the entire agreement of the Parties with respect to the subject matter hereof, contains all covenants, stipulations and provisions agreed by the Parties and shall supersede any prior agreements, expressions of intent or understanding or arrangements with respect to such transaction. No agent or representative of either Party has authority to make, and the Parties shall not be bound by or be liable for, any statement, representation, promise or agreement not set forth herein.
- 7. **Severability.** If any term of this Agreement is found to be invalid or unenforceable, this shall in no way affect the validity or enforceability of the remaining terms thereof. The Parties shall negotiate in good faith new provisions to restore, as best as possible, the original intent and effect of this Agreement with the end in view of rendering all the provisions of this Agreement legal and enforceable.
- 8. **Counterparts.** This Agreement may be signed in any number of copies or counterparts each of which when so signed shall be an original, but all the counterparts shall together constitute one and the same instrument.

IN WITNESS WHEREOF, the parties have signed this Memorandum of Agreement at the date and place above-stated.

SHOPEE PHILIPPINES INC. By:	
Ng Jieqi <i>Authorized Representative</i>	Brent Ulysses D. Tuazon <i>Intern</i>

Signed In The Presence Of:

		
<i>Legal Representative</i>	Arcel D. David <i>Parent/Guardian</i>	<i>Internship Coordinator</i>

Shopee Philippines Inc.
48F The Podium West Tower, 12 ADB Avenue, Wack-Wack Greenhills 1550 City of Mandaluyong

Private & Confidential

Brent Ulysses D. Tuazon
Blk 9 Lot 27 St. Peter Hausland Subdivision Anabu-1b Aguinaldo Hi-way Imus, Cavite
Anabu I -B, Imus, Cavite, South Luzon, 4103

Dear Brent Ulysses,

We write regarding your internship in Shopee Philippines Inc. (“Shopee” or the “Company”).

As part of the requirements for internship, the Company may require you to report for on-site work. In relation to this, you will be required to undergo a medical examination, including a drug-test, (“Examination”) with the medical provider nominated by Shopee.

In the event that the results of your Examination, in Shopee’s sole discretion, indicate that you may not be able to satisfactorily perform your responsibilities as an intern, Shopee has the right to terminate your internship.

This letter shall be governed by the terms and conditions of the Memorandum of Agreement governing your internship with Shopee.

Please confirm your acceptance of the above terms and conditions by signing and returning to us this letter.

May you have a rewarding experience with us.

Yours faithfully,

For and behalf of Shopee:

Ng Jieqi
Authorized Representative

INTERN’S ACKNOWLEDGEMENT

I accept and agree to the above-stated terms and conditions.

Name: Brent Ulysses D. Tuazon Student/Gov’t ID No.: N64-23-005094	Date